HUB24

W-8BEN Guide

Guide to W-8BEN and W-8BEN- E Forms

HUB24 Custodial Services Limited (ABN 94 073 633 664, AFSL 239122)

This information in this guide only applies to investors in HUB24 IDPS. Super members are not required to complete W-8BEN or W-8BEN-E forms.

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If you receive proceeds and income on investments based in the USA, you will have obligations under the income tax laws of the United States of America (USA) to provide information necessary for withholding tax purposes and reporting requirements. This document has been prepared by HUB24 Custodial Services Lt, ABN 94 073 633 664, AFSL 239122 (HUB24) and is current as at 13 March 2022. It is a guide only and is provided to assist you when you complete Forms W-8BEN and W-8BEN-E that are lodged with the Internal Revenue Service (IRS) of the USA. Nothing in this document is intended to constitute advice in relation to any obligations you may have under the tax laws of the USA, nor is it intended to constitute USA tax advice on any investments that you may hold in the USA. For information about these matters, please contact the IRS or your appointed tax adviser. The IRS has published instructions on its website about completing Forms W-8BEN and W-8BEN-E. Please see: www.irs.gov/instructions/index.html The guidance in this form is not intended to replace the guidance of the IRS. Accordingly, HUB24 makes no representations or warranties (express or implied) as to the accuracy or completeness of this guide. To the maximum extent permitted by law, neither HUB24, its related bodies corporate, nor any of their directors, officers, employees, contractors or agents accept any liability for any loss arising in relation to this document or its use. © 2022

Section 1: What is a W-8 form?

The IRS requires non-US persons to complete a W-8 series form to enable withholding agents, e.g., HUB24 determine the appropriate withholding tax rate on income received from investments based in the US. Non-US individuals complete a Form W-8BEN, entities generally complete a Form W-8BEN-E.

The default US withholding tax rate applicable to non-US persons is 30%. However if you are or your investment entity is a tax resident of a country which has a Double TaxAgreement (DTA) with the US, you may be able toclaim a reduced withholding tax rate. Australia and the US have negotiated a DTA.

Section 2: Why should I complete a W-8 form?

The W-8 form is used to determine the appropriate withholding tax rate for securities that pay US source income including some securities listed on the Australian Securities Exchange (ASX) (these can include Chess Depositary Interests (CDI's) and Exchange Traded Funds (ETF's)). If a W-8 form is not completed any US source income will be subject to 30% withholding.

Once your form has been validated by us, it will remain valid until 31 December three years from the date you signed it. For example, if you signed the W-8 form on the 23rd of May 2019, it will remain valid until 31st of December 2022. You will need to provide a new form prior to the expiry of your existing W8 form. Failure to provide a new valid form will result in the loss of reduced withholding tax rates under the DTA.

Investing through HUB24 IDPS simplifies this process, as you will only be required to complete one W-8 form, every three years, regardless of how many US based investments you hold on HUB24 IDPS.

If your circumstances (such as address, change of tax residency) change,you will need to complete and provide HUB24 with a new form at the time your circumstances change.

Section 3: Completing the W-8 form

Individual and Joint accounts: One W-8 form per individual. For joint accounts, all account owners must complete a W-8 form. Instructions and sample form located on page 3.

SMSF accounts: One W-8BEN-E form for the fund. Instructions and sample form located on page 5.

Trust entity accounts: Generally, one W-8BEN-E form for the trust. Instructions and sample form located on page 10.

Company accounts: One W-8BEN-E form for the account. Instructions and sample form located on page 16.

Can HUB24 or my Adviser complete the W-8BEN or W-8BEN-Eforms on behalf of my clients?

No, clients need to complete the applicable W-8BEN or W-8BEN-E form themselves.

Where can I find the W-8BEN and W-8BEN-E forms?

These forms are available on AdviserHUB under *Products & Forms>Forms>Forms Investment.* Here you'll also find sample forms and IRS instructions on how to complete the W-8BEN and W-8BEN-E forms.

Why should I complete the Treaty Claim section of the W-8 forms?

Under the DTA, individuals, corporates and trusts generally benefit from a 15% rate, and to SMSF accounts will be paid tax free if the treaty claim section is properly completed.

Section 4: Individual and Joint Accounts

This form can be completed online\electronically, however, it must be signed by hand. Please see the next page for details of the fields that need to be completed. On the following pages there is a guide to the fields and an example form. All account holders must complete and sign a separate individual W-8BEN form, even if the account is a joint account.

No amendments or changes can be made to the form, if you need to change any of the details, you will need to start again with a new form. New forms are available on AdviserHUB under *Products & Forms>Forms>Forms Investment.*

HUB24 is unable to provide you with advice in relation to your obligations or the US tax consequences of your investment. For further advice please contact the *Internal Revenue Service (IRS)* or your appointed tax adviser. The IRS has published instructions on completing this form on their website at www.irs.gov/formw8ben

Complete in full as per your HUB24 account information. Please note that in the case of a joint account, each account holder should complete their own form.

Please provide your HUB24 account number. Leave blank for new accounts

Either 6a or 6b should be completed. Please note that FTIN is not legally required for Australian tax residents

Please complete if you wish to claim treaty benefits and you are eligible under the relevant tax treaty

Please use the US date format of MM-DD-YYYY

Form **W-8BEN**

(Rev. October 2021)

Department of the Treasury
Internal Revenue Service

Certificate of Foreign Status of Beneficial Owner for United States Tax Withholding and Reporting (Individuals)

▶ For use by individuals. Entities must use Form W-8BEN-E.
▶ Go to *www.irs.gov/FormW8BEN* for instructions and the latest information.
▶ Give this form to the withholding agent or payer. Do not send to the IRS.

OMB No. 1545-1621

Do NOT use this form if:	**Instead, use Form:**
• You are NOT an individual	W-8BEN-E
• You are a U.S. citizen or other U.S. person, including a resident alien individual	W-9
• You are a beneficial owner claiming that income is effectively connected with the conduct of trade or business within the United States (other than personal services)	W-8ECI
• You are a beneficial owner who is receiving compensation for personal services performed in the United States	8233 or W-4
• You are a person acting as an intermediary	W-8IMY

Note: If you are resident in a FATCA partner jurisdiction (that is, a Model 1 IGA jurisdiction with reciprocity), certain tax account information may be provided to your jurisdiction of residence.

Part I **Identification of Beneficial Owner** (see instructions)

1 Name of individual who is the beneficial owner

2 Country of citizenship

3 Permanent residence address (street, apt. or suite no., or rural route). **Do not use a P.O. box or in-care-of address.**

City or town, state or province. Include postal code where appropriate. | Country

4 Mailing address (if different from above)

City or town, state or province. Include postal code where appropriate. | Country

5 U.S. taxpayer identification number (SSN or ITIN), if required (see instructions)

6a Foreign tax identifying number (see instructions)

6b Check if FTIN not legally required ☐

7 Reference number(s) (see instructions)

8 Date of birth (MM-DD-YYYY) (see instructions)

Part II **Claim of Tax Treaty Benefits** (for chapter 3 purposes only) (see instructions)

9 I certify that the beneficial owner is a resident of _____ within the meaning of the income tax treaty between the United States and that country.

10 **Special rates and conditions** (if applicable—see instructions): The beneficial owner is claiming the provisions of Article and paragraph _____ of the treaty identified on line 9 above to claim a _____ % rate of withholding on (specify type of income): _____

Explain the additional conditions in the Article and paragraph the beneficial owner meets to be eligible for the rate of withholding: _____

Part III **Certification**

Under penalties of perjury, I declare that I have examined the information on this form and to the best of my knowledge and belief it is true, correct, and complete. I further certify under penalties of perjury that:

- I am the individual that is the beneficial owner (or am authorized to sign for the individual that is the beneficial owner) of all the income or proceeds to which this form relates or am using this form to document myself for chapter 4 purposes;
- The person named on line 1 of this form is not a U.S. person;
- This form relates to:
  (a) income not effectively connected with the conduct of a trade or business in the United States;
  (b) income effectively connected with the conduct of a trade or business in the United States but is not subject to tax under an applicable income tax treaty;
  (c) the partner's share of a partnership's effectively connected taxable income; or
  (d) the partner's amount realized from the transfer of a partnership interest subject to withholding under section 1446(f);
- The person named on line 1 of this form is a resident of the treaty country listed on line 9 of the form (if any) within the meaning of the income tax treaty between the United States and that country; and
- For broker transactions or barter exchanges, the beneficial owner is an exempt foreign person as defined in the instructions.

Furthermore, I authorize this form to be provided to any withholding agent that has control, receipt, or custody of the income of which I am the beneficial owner or any withholding agent that can disburse or make payments of the income of which I am the beneficial owner. **I agree that I will submit a new form within 30 days if any certification made on this form becomes incorrect.**

Sign Here ▶ ☐ I certify that I have the capacity to sign for the person identified on line 1 of this form.

Signature of beneficial owner (or individual authorized to sign for beneficial owner) | Date (MM-DD-YYYY)

Print name of signer

For Paperwork Reduction Act Notice, see separate instructions. Cat. No. 25047Z Form **W-8BEN** (Rev. 10-2021)

SAMPLE

Key:
☐ Mandatory field
☐ Optional/Completion will depend on circumstances

Example form completed by an Australian tax resident investor who wishes to benefit from reduced withholding taxes on US source income:

Form **W-8BEN**

(Rev. October 2021)

Department of the Treasury
Internal Revenue Service

Certificate of Foreign Status of Beneficial Owner for United States Tax Withholding and Reporting (Individuals)

▶ For use by individuals. Entities must use Form W-8BEN-E.
▶ Go to *www.irs.gov/FormW8BEN* for instructions and the latest information.
▶ Give this form to the withholding agent or payer. Do not send to the IRS.

OMB No. 1545-1621

Do NOT use this form if:	**Instead, use Form:**
• You are NOT an individual	W-8BEN-E
• You are a U.S. citizen or other U.S. person, including a resident alien individual	W-9
• You are a beneficial owner claiming that income is effectively connected with the conduct of trade or business within the United States (other than personal services)	W-8ECI
• You are a beneficial owner who is receiving compensation for personal services performed in the United States	8233 or W-4
• You are a person acting as an intermediary	W-8IMY

Note: If you are resident in a FATCA partner jurisdiction (that is, a Model 1 IGA jurisdiction with reciprocity), certain tax account information may be provided to your jurisdiction of residence.

Part I **Identification of Beneficial Owner** (see instructions)

1 Name of individual who is the beneficial owner
Mr John Francis Sample

2 Country of citizenship
Australia

3 Permanent residence address (street, apt. or suite no., or rural route). **Do not use a P.O. box or in-care-of address.**
1 Main Street

City or town, state or province. Include postal code where appropriate.
Sydney, New South Wales, 2000

Country
Australia

4 Mailing address (if different from above)
PO Box 24

City or town, state or province. Include postal code where appropriate.
Sydney, New South Wales, 2001

Country
Australia

5 U.S. taxpayer identification number (SSN or ITIN), if required (see instructions)

6a Foreign tax identifying number (see instructions)

6b Check if FTIN not legally required ☑

7 Reference number(s) (see instructions)
240000000

8 Date of birth (MM-DD-YYYY) (see instructions)
07-15-1964

Part II **Claim of Tax Treaty Benefits** (for chapter 3 purposes only) (see instructions)

9 I certify that the beneficial owner is a resident of Australia within the meaning of the income tax treaty between the United States and that country.

10 **Special rates and conditions** (if applicable—see instructions): The beneficial owner is claiming the provisions of Article and paragraph _____ of the treaty identified on line 9 above to claim a ____ % rate of withholding on (specify type of income): _____.

Explain the additional conditions in the Article and paragraph the beneficial owner meets to be eligible for the rate of withholding: _____

Part III **Certification**

Under penalties of perjury, I declare that I have examined the information on this form and to the best of my knowledge and belief it is true, correct, and complete. I further certify under penalties of perjury that:

- I am the individual that is the beneficial owner (or am authorized to sign for the individual that is the beneficial owner) of all the income or proceeds to which this form relates or am using this form to document myself for chapter 4 purposes;
- The person named on line 1 of this form is not a U.S. person;
- This form relates to:
  (a) income not effectively connected with the conduct of a trade or business in the United States;
  (b) income effectively connected with the conduct of a trade or business in the United States but is not subject to tax under an applicable income tax treaty;
  (c) the partner's share of a partnership's effectively connected taxable income; or
  (d) the partner's amount realized from the transfer of a partnership interest subject to withholding under section 1446(f);
- The person named on line 1 of this form is a resident of the treaty country listed on line 9 of the form (if any) within the meaning of the income tax treaty between the United States and that country; and
- For broker transactions or barter exchanges, the beneficial owner is an exempt foreign person as defined in the instructions.

Furthermore, I authorize this form to be provided to any withholding agent that has control, receipt, or custody of the income of which I am the beneficial owner or any withholding agent that can disburse or make payments of the income of which I am the beneficial owner. I agree that I will submit a new form within 30 days if any certification made on this form becomes incorrect.

Sign Here ▶ ☑ I certify that I have the capacity to sign for the person identified on line 1 of this form.

J Sample
Signature of beneficial owner (or individual authorized to sign for beneficial owner)

02-23-2022
Date (MM-DD-YYYY)

John Francis Sample
Print name of signer

For Paperwork Reduction Act Notice, see separate instructions. Cat. No. 25047Z Form **W-8BEN** (Rev. 10-2021)

SAMPLE

Section 5: Self-Managed Super Fund

This form can be completed online\electronically, however, it must be signed by hand.

One W-8BEN-E form is required for Self-Managed Super Fund accounts.

No amendments or changes can be made to the form, if you need to change any of the details, you will need to start again with a new form. New forms are available on AdviserHUB under *Products & Forms>Forms>Forms Investment.*

The W-8BENE form can only be signed by ONE person, any forms with more than one signature will be rejected.

The IRS does not specify how an Australian SMSF should complete these forms, and if you are unsure on any aspect of the form or appropriate entity classifications you should contact your tax advisor. Across the next few pages we have included an example form, and as a guide, generally for a SMSF, completion of the following fields would be expected:

Page 1 Line 1	Name of organization that is the beneficial owner. This is a mandatory field. This must be the full superannuation fund name, excluding the trustee(s) name, and must match the trust deed of the superannuation fund and the HUB24 account name. If your HUB24 account name includes individual/company names, they are not required on line 1 on the form. Some examples include: HUB24 account name "Jumping Pty Ltd <Jumping Family Superannuation Fund>" should enter "Jumping Family Superannuation Fund" HUB24 account name "Jack Johnson & Melinda Smith <J and M Printing Employees Super Fund>" should enter "J and M Printing Employees Super Fund"
Page 1 Line 2	Country of incorporation or organization. This is a mandatory field
Page 1 Line 3	Chapter 3 Status (entity type) This is a mandatory field. Generally, a SMSF would be a complex trust for US tax purposes. However, as the criteria for entity classification for US tax purposes are different to the rules in Australia, we recommend that you seek independent taxation advice if you are unsure.
Page 1 Line 5	Chapter 4 Status (FATCA status) This is a mandatory field. Generally, a SMSF would be a Nonreporting IGA FFI for FATCA purposes however we would recommend that you seek independent taxation advice if you are unsure.
Page 1 Line 6	Permanent Residence Address This is a mandatory field. Enter the Registered Address for the company. This should not be a PO Box or in-care-of address unless that address is also the registered address.
Page 1 Line 7	Mailing Address This is an optional field. Enter the Mailing Address of the SMSF if it is different from the Registered Address.
Page 2 Line 8	US taxpayer identification number (TIN) This is an optional field. Please enter TIN if the SMSF has a US TIN
Page 2 Line 9	GIIN/Foreign TIN This is a mandatory field. If the SMSF has a GIIN it should be entered, otherwise leave the GIIN field blank. You must either enter the SMSF's ABN (or TFN) or tick box 9c. Please note that FTIN is not legally required for Australian tax residents.
Page 2 Line 10	Reference Number This is an optional field. Enter your HUB24 account number if known or leave blank if this is for a new account.

Page 2 Line 14	Claim of Tax Treaty Benefits This is an optional field. If an entity is eligible for and wishes to claim treaty benefits, this should be completed. Generally, line a should be ticked, with the country completed. In addition, line b should be ticked and one of the subcategories selected. SMSFs would generally be covered under Article 16 (2)(g) – ownership/base erosion test. If this is the case, the 'other' subcategory should be selected and 'Article 16 (2)(g) – ownership/base erosion test' inserted in the space provided.
Pages 2-8 Lines 16-43	FATCA Status Follow Up Certifications It is mandatory to complete the relevant follow up certification. The part of the form to be completed will depend on the FATCA status selected on line 5. If a SMSF has selected a FATCA classification of Nonreporting IGA FFI then they would need to complete Line 26. The initial box would need to be ticked with the country also completed. Australia has a Model 1 IGA and the entity description for how the entity should be treated would be an "Australian retirement fund"
Page 8	Certification This is mandatory. As you complete this you should read the declaration and tick the box to confirm that you have capacity to sign for the entity listed on line 1 of the form. You should then sign and print your name and enter the date using American format (MM-DD-YYYY).

HUB24 is unable to provide you with advice in relation to your obligations or the US tax consequences of your investment. For further advice please contact the *United States Internal Revenue Service (IRS)* or your appointed tax adviser. The IRS has published instructions on completing this form on their website at:www.irs.gov/formw8bene

Example form completed by an Australian tax resident non-individual investor who wishes to benefit from reduced withholding taxes on US source income:

Form **W-8BEN-E**
(Rev. October 2021)
Department of the Treasury
Internal Revenue Service

Certificate of Status of Beneficial Owner for United States Tax Withholding and Reporting (Entities)
▶ For use by entities. Individuals must use Form W-8BEN. ▶ Section references are to the Internal Revenue Code.
▶ Go to *www.irs.gov/FormW8BENE* for instructions and the latest information.
▶ Give this form to the withholding agent or payer. Do not send to the IRS.

OMB No. 1545-1621

Do NOT use this form for:	**Instead use Form:**
• U.S. entity or U.S. citizen or resident	W-9
• A foreign individual	W-8BEN (Individual) or Form 8233
• A foreign individual or entity claiming that income is effectively connected with the conduct of trade or business within the United States (unless claiming treaty benefits)	W-8ECI
• A foreign partnership, a foreign simple trust, or a foreign grantor trust (unless claiming treaty benefits) (see instructions for exceptions)	W-8IMY
• A foreign government, international organization, foreign central bank of issue, foreign tax-exempt organization, foreign private foundation, or government of a U.S. possession claiming that income is effectively connected U.S. income or that is claiming the applicability of section(s) 115(2), 501(c), 892, 895, or 1443(b) (unless claiming treaty benefits) (see instructions for other exceptions)	W-8ECI or W-8EXP
• Any person acting as an intermediary (including a qualified intermediary acting as a qualified derivatives dealer)	W-8IMY

Part I Identification of Beneficial Owner

1 Name of organization that is the beneficial owner
Jumping Family Superannuation Fund

2 Country of incorporation or organization
Australia

3 Name of disregarded entity receiving the payment (if applicable, see instructions)

4 Chapter 3 Status (entity type) (Must check one box only):
- ☐ Simple trust
- ☐ Central Bank of Issue
- ☐ Grantor trust
- ☐ Tax-exempt organization
- ☐ Private foundation
- ☐ Disregarded entity
- ☐ Corporation
- ☑ Complex trust
- ☐ Estate
- ☐ International organization
- ☐ Partnership
- ☐ Foreign Government - Controlled Entity
- ☐ Foreign Government - Integral Part

If you entered disregarded entity, partnership, simple trust, or grantor trust above, is the entity a hybrid making a treaty claim? If "Yes," complete Part III. ☐ Yes ☐ No

5 Chapter 4 Status (FATCA status) (See instructions for details and complete the certification below for the entity's applicable status.)
- ☐ Nonparticipating FFI (including an FFI related to a Reporting IGA FFI other than a deemed-compliant FFI, participating FFI, or exempt beneficial owner).
- ☐ Participating FFI.
- ☐ Reporting Model 1 FFI.
- ☐ Reporting Model 2 FFI.
- ☐ Registered deemed-compliant FFI (other than a reporting Model 1 FFI, sponsored FFI, or nonreporting IGA FFI covered in Part XII). See instructions.
- ☐ Sponsored FFI. Complete Part IV.
- ☐ Certified deemed-compliant nonregistering local bank. Complete Part V.
- ☐ Certified deemed-compliant FFI with only low-value accounts. Complete Part VI.
- ☐ Certified deemed-compliant sponsored, closely held investment vehicle. Complete Part VII.
- ☐ Certified deemed-compliant limited life debt investment entity. Complete Part VIII.
- ☐ Certain investment entities that do not maintain financial accounts. Complete Part IX.
- ☐ Owner-documented FFI. Complete Part X.
- ☐ Restricted distributor. Complete Part XI.
- ☑ Nonreporting IGA FFI. Complete Part XII.
- ☐ Foreign government, government of a U.S. possession, or foreign central bank of issue. Complete Part XIII.
- ☐ International organization. Complete Part XIV.
- ☐ Exempt retirement plans. Complete Part XV.
- ☐ Entity wholly owned by exempt beneficial owners. Complete Part XVI.
- ☐ Territory financial institution. Complete Part XVII.
- ☐ Excepted nonfinancial group entity. Complete Part XVIII.
- ☐ Excepted nonfinancial start-up company. Complete Part XIX.
- ☐ Excepted nonfinancial entity in liquidation or bankruptcy. Complete Part XX.
- ☐ 501(c) organization. Complete Part XXI.
- ☐ Nonprofit organization. Complete Part XXII.
- ☐ Publicly traded NFFE or NFFE affiliate of a publicly traded corporation. Complete Part XXIII.
- ☐ Excepted territory NFFE. Complete Part XXIV.
- ☐ Active NFFE. Complete Part XXV.
- ☐ Passive NFFE. Complete Part XXVI.
- ☐ Excepted inter-affiliate FFI. Complete Part XXVII.
- ☐ Direct reporting NFFE.
- ☐ Sponsored direct reporting NFFE. Complete Part XXVIII.
- ☐ Account that is not a financial account.

6 Permanent residence address (street, apt. or suite no., or rural route). **Do not use a P.O. box or in-care-of address** (other than a registered address).
12 Short Street

City or town, state or province. Include postal code where appropriate.
Sydney, New South Wales, 2000

Country
Australia

7 Mailing address (if different from above)
PO Box 24

City or town, state or province. Include postal code where appropriate.
Sydney, New South Wales, 2001

Country
Australia

For Paperwork Reduction Act Notice, see separate instructions. Cat. No. 59689N Form **W-8BEN-E** (Rev. 10-2021)

SAMPLE

Form W-8BEN-E (Rev. 10-2021) Page 2

Part I **Identification of Beneficial Owner** *(continued)*

8 U.S. taxpayer identification number (TIN), if required

9a GIIN | b Foreign TIN | c Check if FTIN not legally required. . . . . ▶ ☑

10 Reference number(s) (see instructions) 346000000

Note: Please complete remainder of the form including signing the form in Part XXX.

Part II **Disregarded Entity or Branch Receiving Payment.** (Complete only if a disregarded entity with a GIIN or a branch of an FFI in a country other than the FFI's country of residence. See instructions.)

11 Chapter 4 Status (FATCA status) of disregarded entity or branch receiving payment

☐ Branch treated as nonparticipating FFI. ☐ Reporting Model 1 FFI. ☐ U.S. Branch.
☐ Participating FFI. ☐ Reporting Model 2 FFI.

12 Address of disregarded entity or branch (street, apt. or suite no., or rural route). **Do not use a P.O. box or in-care-of address** (other than a registered address).

City or town, state or province. Include postal code where appropriate.

Country

13 GIIN (if any)

Part III **Claim of Tax Treaty Benefits** (if applicable). (For chapter 3 purposes only.)

14 I certify that (check all that apply):

a ☑ The beneficial owner is a resident of Australia within the meaning of the income tax treaty between the United States and that country.

b ☑ The beneficial owner derives the item (or items) of income for which the treaty benefits are claimed, and, if applicable, meets the requirements of the treaty provision dealing with limitation on benefits. The following are types of limitation on benefits provisions that may be included in an applicable tax treaty (check only one; see instructions):

☐ Government
☐ Tax-exempt pension trust or pension fund
☐ Other tax-exempt organization
☐ Publicly traded corporation
☐ Subsidiary of a publicly traded corporation
☐ Company that meets the ownership and base erosion test
☐ Company that meets the derivative benefits test
☐ Company with an item of income that meets active trade or business test
☐ Favorable discretionary determination by the U.S. competent authority received
☐ No LOB article in treaty
☑ Other (specify Article and paragraph): Article 16(2)(g) ownership/base erosion test

c ☐ The beneficial owner is claiming treaty benefits for U.S. source dividends received from a foreign corporation or interest from a U.S. trade or business of a foreign corporation and meets qualified resident status (see instructions).

15 **Special rates and conditions** (if applicable—see instructions):
The beneficial owner is claiming the provisions of Article and paragraph
of the treaty identified on line 14a above to claim a % rate of withholding on (specify type of income):
Explain the additional conditions in the Article the beneficial owner meets to be eligible for the rate of withholding:

Part IV **Sponsored FFI**

16 Name of sponsoring entity:

17 **Check whichever box applies.**

☐ I certify that the entity identified in Part I:
- Is an investment entity;
- Is not a QI, WP (except to the extent permitted in the withholding foreign partnership agreement), or WT; **and**
- Has agreed with the entity identified above (that is not a nonparticipating FFI) to act as the sponsoring entity for this entity.

☐ I certify that the entity identified in Part I:
- Is a controlled foreign corporation as defined in section 957(a);
- Is not a QI, WP, or WT;
- Is wholly owned, directly or indirectly, by the U.S. financial institution identified above that agrees to act as the sponsoring entity for this entity; **and**
- Shares a common electronic account system with the sponsoring entity (identified above) that enables the sponsoring entity to identify all account holders and payees of the entity and to access all account and customer information maintained by the entity including, but not limited to, customer identification information, customer documentation, account balance, and all payments made to account holders or payees.

Form **W-8BEN-E** (Rev. 10-2021)

SAMPLE

Pages 3 and 4 of the W-8BEN-E form are not included in this guide

Part XII Nonreporting IGA FFI

26 ☑ I certify that the entity identified in Part I:

- Meets the requirements to be considered a nonreporting financial institution pursuant to an applicable IGA between the United States and Australia. The applicable IGA is a ☑ Model 1 IGA or a ☐ Model 2 IGA; and is treated as a Australian Retirement Fund under the provisions of the applicable IGA or Treasury regulations (if applicable, see instructions);
- If you are a trustee documented trust or a sponsored entity, provide the name of the trustee or sponsor _____. The trustee is: ☐ U.S. ☐ Foreign

Part XIII Foreign Government, Government of a U.S. Possession, or Foreign Central Bank of Issue

27 ☐ I certify that the entity identified in Part I is the beneficial owner of the payment, and is not engaged in commercial financial activities of a type engaged in by an insurance company, custodial institution, or depository institution with respect to the payments, accounts, or obligations for which this form is submitted (except as permitted in Regulations section 1.1471-6(h)(2)).

Part XIV International Organization

Check box 28a or 28b, whichever applies.

28a ☐ I certify that the entity identified in Part I is an international organization described in section 7701(a)(18).

b ☐ I certify that the entity identified in Part I:

- Is comprised primarily of foreign governments;
- Is recognized as an intergovernmental or supranational organization under a foreign law similar to the International Organizations Immunities Act or that has in effect a headquarters agreement with a foreign government;
- The benefit of the entity's income does not inure to any private person; **and**
- Is the beneficial owner of the payment and is not engaged in commercial financial activities of a type engaged in by an insurance company, custodial institution, or depository institution with respect to the payments, accounts, or obligations for which this form is submitted (except as permitted in Regulations section 1.1471-6(h)(2)).

Part XV Exempt Retirement Plans

Check box 29a, b, c, d, e, or f, whichever applies.

29a ☐ I certify that the entity identified in Part I:

- Is established in a country with which the United States has an income tax treaty in force (see Part III if claiming treaty benefits);
- Is operated principally to administer or provide pension or retirement benefits; **and**
- Is entitled to treaty benefits on income that the fund derives from U.S. sources (or would be entitled to benefits if it derived any such income) as a resident of the other country which satisfies any applicable limitation on benefits requirement.

b ☐ I certify that the entity identified in Part I:

- Is organized for the provision of retirement, disability, or death benefits (or any combination thereof) to beneficiaries that are former employees of one or more employers in consideration for services rendered;
- No single beneficiary has a right to more than 5% of the FFI's assets;
- Is subject to government regulation and provides annual information reporting about its beneficiaries to the relevant tax authorities in the country in which the fund is established or operated; **and**
  - **(i)** Is generally exempt from tax on investment income under the laws of the country in which it is established or operates due to its status as a retirement or pension plan;
  - **(ii)** Receives at least 50% of its total contributions from sponsoring employers (disregarding transfers of assets from other plans described in this part, retirement and pension accounts described in an applicable Model 1 or Model 2 IGA, other retirement funds described in an applicable Model 1 or Model 2 IGA, or accounts described in Regulations section 1.1471-5(b)(2)(i)(A));
  - **(iii)** Either does not permit or penalizes distributions or withdrawals made before the occurrence of specified events related to retirement, disability, or death (except rollover distributions to accounts described in Regulations section 1.1471-5(b)(2)(i)(A) (referring to retirement and pension accounts), to retirement and pension accounts described in an applicable Model 1 or Model 2 IGA, or to other retirement funds described in this part or in an applicable Model 1 or Model 2 IGA); **or**
  - **(iv)** Limits contributions by employees to the fund by reference to earned income of the employee or may not exceed $50,000 annually.

c ☐ I certify that the entity identified in Part I:

- Is organized for the provision of retirement, disability, or death benefits (or any combination thereof) to beneficiaries that are former employees of one or more employers in consideration for services rendered;
- Has fewer than 50 participants;
- Is sponsored by one or more employers each of which is not an investment entity or passive NFFE;
- Employee and employer contributions to the fund (disregarding transfers of assets from other plans described in this part, retirement and pension accounts described in an applicable Model 1 or Model 2 IGA, or accounts described in Regulations section 1.1471-5(b)(2)(i)(A)) are limited by reference to earned income and compensation of the employee, respectively;
- Participants that are not residents of the country in which the fund is established or operated are not entitled to more than 20% of the fund's assets; **and**
- Is subject to government regulation and provides annual information reporting about its beneficiaries to the relevant tax authorities in the country in which the fund is established or operates.

SAMPLE

Pages 6 and 7 of the W-8BEN-E form are not included in this guide

Part XXVII Excepted Inter-Affiliate FFI

41 ☐ I certify that the entity identified in Part I:

- Is a member of an expanded affiliated group;
- Does not maintain financial accounts (other than accounts maintained for members of its expanded affiliated group);
- Does not make withholdable payments to any person other than to members of its expanded affiliated group;
- Does not hold an account (other than depository accounts in the country in which the entity is operating to pay for expenses) with or receive payments from any withholding agent other than a member of its expanded affiliated group; **and**
- Has not agreed to report under Regulations section 1.1471-4(d)(2)(ii)(C) or otherwise act as an agent for chapter 4 purposes on behalf of any financial institution, including a member of its expanded affiliated group.

Part XXVIII Sponsored Direct Reporting NFFE (see instructions for when this is permitted)

42 Name of sponsoring entity: _____

43 ☐ I certify that the entity identified in Part I is a direct reporting NFFE that is sponsored by the entity identified on line 42.

Part XXIX Substantial U.S. Owners of Passive NFFE

As required by Part XXVI, provide the name, address, and TIN of each substantial U.S. owner of the NFFE. Please see the instructions for a definition of substantial U.S. owner. If providing the form to an FFI treated as a reporting Model 1 FFI or reporting Model 2 FFI, an NFFE may also use this part for reporting its controlling U.S. persons under an applicable IGA.

Name	Address	TIN

SAMPLE

Part XXX Certification

Under penalties of perjury, I declare that I have examined the information on this form and to the best of my knowledge and belief it is true, correct, and complete. I further certify under penalties of perjury that:

- The entity identified on line 1 of this form is the beneficial owner of all the income or proceeds to which this form relates, is using this form to certify its status for chapter 4 purposes, or is submitting this form for purposes of section 6050W or 6050Y;
- The entity identified on line 1 of this form is not a U.S. person;
- This form relates to: (a) income not effectively connected with the conduct of a trade or business in the United States, (b) income effectively connected with the conduct of a trade or business in the United States but is not subject to tax under an income tax treaty, (c) the partner's share of a partnership's effectively connected taxable income, or (d) the partner's amount realized from the transfer of a partnership interest subject to withholding under section 1446(f); and
- For broker transactions or barter exchanges, the beneficial owner is an exempt foreign person as defined in the instructions.

Furthermore, I authorize this form to be provided to any withholding agent that has control, receipt, or custody of the income of which the entity on line 1 is the beneficial owner or any withholding agent that can disburse or make payments of the income of which the entity on line 1 is the beneficial owner.

I agree that I will submit a new form within 30 days if any certification on this form becomes incorrect.

☑ **I certify that I have the capacity to sign for the entity identified on line 1 of this form.**

Sign Here ▶ M Jump — Signature of individual authorized to sign for beneficial owner

Michael Jump — Print Name

02-24-2022 — Date (MM-DD-YYYY)

Section 6: Trusts

This form can be completed online\electronically, however, it must be signed by hand.

One W-8BEN-E form is required for a Trust account.

No amendments or changes can be made to the form, if you need to change any of the details, you will need to start again with a new form. New forms are available on AdviserHUB under *Products & Forms>Forms>Forms Investment.*

The W-8BENE form can only be signed by ONE person, any forms with more than one signature will be rejected.

The IRS does not specify how an Australian trust should complete these forms, and if you are unsure on any aspect of the form or appropriate entity classifications you should contact your tax advisor. Across the next few pages we have included an example form, and as a guide, generally for a trust, completion of the following fields would be expected:

Page 1 Line 1	Name of organization that is the beneficial owner. This is a mandatory field. This must be the Trust's name, excluding the trustee(s) name, and must match the trust deed of the trust and the HUB24 account name. If your HUB24 account name includes individual/company names, they are not required on line 1 on the form. Some examples include: Hub24 account name "Running Pty Ltd <Running Family Trust>" should enter "Running Family Trust" Hub24 account name "Tom Longeron & Cameron Guthrie <Guthrie Family Trust>" should enter "Guthrie Family Trust"
Page 1 Line 2	Country of incorporation or organization. This is a mandatory field
Page 1 Line 3	Chapter 3 Status (entity type) This is a mandatory field. Generally, an Australian trust would be a complex trust for US tax purposes. However, as the criteria for entity classification for US tax purposes are different to the rules in Australia, we recommend that you seek independent taxation advice if you are unsure.
Page 1 Line 5	Chapter 4 Status (FATCA status) This is a mandatory field. Generally, an Australian trust would be either a Passive NFFE or an Active NFFE for FATCA purposes however we would recommend that you seek independent taxation advice if you are unsure.
Page 1 Line 6	Permanent Residence Address This is a mandatory field. Enter the Registered Address for the trust. This should not be a PO Box or in-care-of address unless that address is also the registered address.
Page 1 Line 7	Mailing Address This is an optional field. Enter the Mailing Address of the trust if this is different from the Registered Address.
Page 2 Line 8	US taxpayer identification number (TIN) This is an optional field. Please enter TIN if the trust has a US TIN
Page 2 Line 9	GIIN/Foreign TIN This is a mandatory field. If the trust has a GIIN it should be entered, otherwise leave the GIIN field blank. You must either enter the trust's ABN (or TFN) or tick box 9c. Please note that FTIN is not legally required for Australian tax residents.
Page 2 Line 10	Reference Number This is an optional field. Enter your HUB24 account number if known or leave blank if this is for a new account.

Page 2 Line 14	Claim of Tax Treaty Benefits This is an optional field. If an entity is eligible for and wishes to claim treaty benefits, this should be completed. Generally, line a should be ticked, with the country completed. In addition, line b should be ticked and one of the subcategories selected. If more than 50% of the beneficiaries of the trust are Australian tax residents, the trust would generally be covered under Article 16 (2)(g) – ownership/base erosion test. If this is the case, the 'other' subcategory should be selected and 'Article 16 (2)(g) – ownership/base erosion test' inserted in the space provided.
Pages 2-8 Lines 16-43	FATCA Status Follow Up Certifications It is mandatory to complete the relevant follow up certification. The part of the form to be completed will depend on the FATCA status selected on line 5. If a trust has selected a FATCA classification of Active NFFE then they would need to complete the tick box on Line 39 to confirm that the entity meets the necessary criteria for this classification. If the FATCA classification is Passive NFFE, then line 40 would need to be completed by ticking the certification on line 40a along with one of either line 40b or line 40c, depending on whether the entity has any US owners or controlling persons.
Page 8	Certification This is mandatory. As you complete this you should read the declaration and tick the box to confirm that you have capacity to sign for the entity listed on line 1 of the form. You should then sign and print your name, and enter the date using American format (MM-DD-YYYY).

HUB24 is unable to provide you with advice in relation to your obligations or the US tax consequences of your investment. For further advice please contact the *Internal Revenue Service (IRS)* or your appointed tax adviser. The IRS has published instructions on completing this form on their website at: www.irs.gov/formw8bene

Example form completed by an Australian tax resident complex trust investor who wishes to benefit from reduced withholding taxes on US source income:

Form **W-8BEN-E**
(Rev. October 2021)
Department of the Treasury
Internal Revenue Service

Certificate of Status of Beneficial Owner for United States Tax Withholding and Reporting (Entities)

▶ For use by entities. Individuals must use Form W-8BEN. ▶ Section references are to the Internal Revenue Code.
▶ Go to *www.irs.gov/FormW8BENE* for instructions and the latest information.
▶ Give this form to the withholding agent or payer. Do not send to the IRS.

OMB No. 1545-1621

Do NOT use this form for:	Instead use Form:
• U.S. entity or U.S. citizen or resident	W-9
• A foreign individual	W-8BEN (Individual) or Form 8233
• A foreign individual or entity claiming that income is effectively connected with the conduct of trade or business within the United States (unless claiming treaty benefits)	W-8ECI
• A foreign partnership, a foreign simple trust, or a foreign grantor trust (unless claiming treaty benefits) (see instructions for exceptions)	W-8IMY
• A foreign government, international organization, foreign central bank of issue, foreign tax-exempt organization, foreign private foundation, or government of a U.S. possession claiming that income is effectively connected U.S. income or that is claiming the applicability of section(s) 115(2), 501(c), 892, 895, or 1443(b) (unless claiming treaty benefits) (see instructions for other exceptions)	W-8ECI or W-8EXP
• Any person acting as an intermediary (including a qualified intermediary acting as a qualified derivatives dealer)	W-8IMY

Part I Identification of Beneficial Owner

1 Name of organization that is the beneficial owner
Running Family Trust

2 Country of incorporation or organization
Australia

3 Name of disregarded entity receiving the payment (if applicable, see instructions)

4 Chapter 3 Status (entity type) (Must check one box only):
- ☐ Corporation
- ☐ Partnership
- ☐ Simple trust
- ☐ Tax-exempt organization
- ☑ Complex trust
- ☐ Foreign Government - Controlled Entity
- ☐ Central Bank of Issue
- ☐ Private foundation
- ☐ Estate
- ☐ Foreign Government - Integral Part
- ☐ Grantor trust
- ☐ Disregarded entity
- ☐ International organization

If you entered disregarded entity, partnership, simple trust, or grantor trust above, is the entity a hybrid making a treaty claim? If "Yes," complete Part III. ☐ Yes ☐ No

5 Chapter 4 Status (FATCA status) (See instructions for details and complete the certification below for the entity's applicable status.)
- ☐ Nonparticipating FFI (including an FFI related to a Reporting IGA FFI other than a deemed-compliant FFI, participating FFI, or exempt beneficial owner).
- ☐ Participating FFI.
- ☐ Reporting Model 1 FFI.
- ☐ Reporting Model 2 FFI.
- ☐ Registered deemed-compliant FFI (other than a reporting Model 1 FFI, sponsored FFI, or nonreporting IGA FFI covered in Part XII). See instructions.
- ☐ Sponsored FFI. Complete Part IV.
- ☐ Certified deemed-compliant nonregistering local bank. Complete Part V.
- ☐ Certified deemed-compliant FFI with only low-value accounts. Complete Part VI.
- ☐ Certified deemed-compliant sponsored, closely held investment vehicle. Complete Part VII.
- ☐ Certified deemed-compliant limited life debt investment entity. Complete Part VIII.
- ☐ Certain investment entities that do not maintain financial accounts. Complete Part IX.
- ☐ Owner-documented FFI. Complete Part X.
- ☐ Restricted distributor. Complete Part XI.
- ☐ Nonreporting IGA FFI. Complete Part XII.
- ☐ Foreign government, government of a U.S. possession, or foreign central bank of issue. Complete Part XIII.
- ☐ International organization. Complete Part XIV.
- ☐ Exempt retirement plans. Complete Part XV.
- ☐ Entity wholly owned by exempt beneficial owners. Complete Part XVI.
- ☐ Territory financial institution. Complete Part XVII.
- ☐ Excepted nonfinancial group entity. Complete Part XVIII.
- ☐ Excepted nonfinancial start-up company. Complete Part XIX.
- ☐ Excepted nonfinancial entity in liquidation or bankruptcy. Complete Part XX.
- ☐ 501(c) organization. Complete Part XXI.
- ☐ Nonprofit organization. Complete Part XXII.
- ☐ Publicly traded NFFE or NFFE affiliate of a publicly traded corporation. Complete Part XXIII.
- ☐ Excepted territory NFFE. Complete Part XXIV.
- ☐ Active NFFE. Complete Part XXV.
- ☑ Passive NFFE. Complete Part XXVI.
- ☐ Excepted inter-affiliate FFI. Complete Part XXVII.
- ☐ Direct reporting NFFE.
- ☐ Sponsored direct reporting NFFE. Complete Part XXVIII.
- ☐ Account that is not a financial account.

6 Permanent residence address (street, apt. or suite no., or rural route). **Do not use a P.O. box or in-care-of address** (other than a registered address).
155 Real Street

City or town, state or province. Include postal code where appropriate.
Brisbane, Queensland, 4000

Country
Australia

7 Mailing address (if different from above)
PO Box 24

City or town, state or province. Include postal code where appropriate.
Sydney, NSW, 2001

Country
Australia

For Paperwork Reduction Act Notice, see separate instructions. Cat. No. 59689N Form **W-8BEN-E** (Rev. 10-2021)

SAMPLE

Part I **Identification of Beneficial Owner** *(continued)*

8 U.S. taxpayer identification number (TIN), if required

9a GIIN | b Foreign TIN | c Check if FTIN not legally required. . . . . ▶ ☑

10 Reference number(s) (see instructions) 347289000

Note: Please complete remainder of the form including signing the form in Part XXX.

Part II **Disregarded Entity or Branch Receiving Payment.** (Complete only if a disregarded entity with a GIIN or a branch of an FFI in a country other than the FFI's country of residence. See instructions.)

11 Chapter 4 Status (FATCA status) of disregarded entity or branch receiving payment

☐ Branch treated as nonparticipating FFI. ☐ Reporting Model 1 FFI. ☐ U.S. Branch.
☐ Participating FFI. ☐ Reporting Model 2 FFI.

12 Address of disregarded entity or branch (street, apt. or suite no., or rural route). **Do not use a P.O. box or in-care-of address** (other than a registered address).

City or town, state or province. Include postal code where appropriate.

Country

13 GIIN (if any)

Part III **Claim of Tax Treaty Benefits** (if applicable). (For chapter 3 purposes only.)

14 I certify that (check all that apply):

a ☑ The beneficial owner is a resident of Australia within the meaning of the income tax treaty between the United States and that country.

b ☑ The beneficial owner derives the item (or items) of income for which the treaty benefits are claimed, and, if applicable, meets the requirements of the treaty provision dealing with limitation on benefits. The following are types of limitation on benefits provisions that may be included in an applicable tax treaty (check only one; see instructions):

☐ Government
☐ Tax-exempt pension trust or pension fund
☐ Other tax-exempt organization
☐ Publicly traded corporation
☐ Subsidiary of a publicly traded corporation
☐ Company that meets the ownership and base erosion test
☐ Company that meets the derivative benefits test
☐ Company with an item of income that meets active trade or business test
☐ Favorable discretionary determination by the U.S. competent authority received
☐ No LOB article in treaty
☑ Other (specify Article and paragraph): Article 16(2)(g) ownership/base erosion test

c ☐ The beneficial owner is claiming treaty benefits for U.S. source dividends received from a foreign corporation or interest from a U.S. trade or business of a foreign corporation and meets qualified resident status (see instructions).

15 **Special rates and conditions** (if applicable—see instructions):
The beneficial owner is claiming the provisions of Article and paragraph
of the treaty identified on line 14a above to claim a % rate of withholding on (specify type of income):
Explain the additional conditions in the Article the beneficial owner meets to be eligible for the rate of withholding:

Part IV **Sponsored FFI**

16 Name of sponsoring entity:

17 **Check whichever box applies.**

☐ I certify that the entity identified in Part I:
- Is an investment entity;
- Is not a QI, WP (except to the extent permitted in the withholding foreign partnership agreement), or WT; **and**
- Has agreed with the entity identified above (that is not a nonparticipating FFI) to act as the sponsoring entity for this entity.

☐ I certify that the entity identified in Part I:
- Is a controlled foreign corporation as defined in section 957(a);
- Is not a QI, WP, or WT;
- Is wholly owned, directly or indirectly, by the U.S. financial institution identified above that agrees to act as the sponsoring entity for this entity; **and**
- Shares a common electronic account system with the sponsoring entity (identified above) that enables the sponsoring entity to identify all account holders and payees of the entity and to access all account and customer information maintained by the entity including, but not limited to, customer identification information, customer documentation, account balance, and all payments made to account holders or payees.

SAMPLE

Pages 3 - 6 of the W-8BEN-E form are not included in this guide

Part XXI 501(c) Organization

35 ☐ I certify that the entity identified in Part I is a 501(c) organization that:

- Has been issued a determination letter from the IRS that is currently in effect concluding that the payee is a section 501(c) organization that is dated _____; **or**
- Has provided a copy of an opinion from U.S. counsel certifying that the payee is a section 501(c) organization (without regard to whether the payee is a foreign private foundation).

Part XXII Nonprofit Organization

36 ☐ I certify that the entity identified in Part I is a nonprofit organization that meets the following requirements.

- The entity is established and maintained in its country of residence exclusively for religious, charitable, scientific, artistic, cultural or educational purposes;
- The entity is exempt from income tax in its country of residence;
- The entity has no shareholders or members who have a proprietary or beneficial interest in its income or assets;
- Neither the applicable laws of the entity's country of residence nor the entity's formation documents permit any income or assets of the entity to be distributed to, or applied for the benefit of, a private person or noncharitable entity other than pursuant to the conduct of the entity's charitable activities or as payment of reasonable compensation for services rendered or payment representing the fair market value of property which the entity has purchased; **and**
- The applicable laws of the entity's country of residence or the entity's formation documents require that, upon the entity's liquidation or dissolution, all of its assets be distributed to an entity that is a foreign government, an integral part of a foreign government, a controlled entity of a foreign government, or another organization that is described in this part or escheats to the government of the entity's country of residence or any political subdivision thereof.

Part XXIII Publicly Traded NFFE or NFFE Affiliate of a Publicly Traded Corporation

Check box 37a or 37b, whichever applies.

37a ☐ I certify that:

- The entity identified in Part I is a foreign corporation that is not a financial institution; **and**
- The stock of such corporation is regularly traded on one or more established securities markets, including _____ (name one securities exchange upon which the stock is regularly traded).

b ☐ I certify that:

- The entity identified in Part I is a foreign corporation that is not a financial institution;
- The entity identified in Part I is a member of the same expanded affiliated group as an entity the stock of which is regularly traded on an established securities market;
- The name of the entity, the stock of which is regularly traded on an established securities market, is _____; **and**
- The name of the securities market on which the stock is regularly traded is _____.

Part XXIV Excepted Territory NFFE

38 ☐ I certify that:

- The entity identified in Part I is an entity that is organized in a possession of the United States;
- The entity identified in Part I:
  - (i) Does not accept deposits in the ordinary course of a banking or similar business;
  - (ii) Does not hold, as a substantial portion of its business, financial assets for the account of others; **or**
  - (iii) Is not an insurance company (or the holding company of an insurance company) that issues or is obligated to make payments with respect to a financial account; **and**
- All of the owners of the entity identified in Part I are bona fide residents of the possession in which the NFFE is organized or incorporated.

Part XXV Active NFFE

39 ☐ I certify that:

- The entity identified in Part I is a foreign entity that is not a financial institution;
- Less than 50% of such entity's gross income for the preceding calendar year is passive income; **and**
- Less than 50% of the assets held by such entity are assets that produce or are held for the production of passive income (calculated as a weighted average of the percentage of passive assets measured quarterly) (see instructions for the definition of passive income).

Part XXVI Passive NFFE

40a ☑ I certify that the entity identified in Part I is a foreign entity that is not a financial institution (other than an investment entity organized in a possession of the United States) and is not certifying its status as a publicly traded NFFE (or affiliate), excepted territory NFFE, active NFFE, direct reporting NFFE, or sponsored direct reporting NFFE.

Check box 40b or 40c, whichever applies.

b ☑ I further certify that the entity identified in Part I has no substantial U.S. owners (or, if applicable, no controlling U.S. persons); **or**

c ☐ I further certify that the entity identified in Part I has provided the name, address, and TIN of each substantial U.S. owner (or, if applicable, controlling U.S. person) of the NFFE in Part XXIX.

SAMPLE

Part XXVII Excepted Inter-Affiliate FFI

41 ☐ I certify that the entity identified in Part I:

- Is a member of an expanded affiliated group;
- Does not maintain financial accounts (other than accounts maintained for members of its expanded affiliated group);
- Does not make withholdable payments to any person other than to members of its expanded affiliated group;
- Does not hold an account (other than depository accounts in the country in which the entity is operating to pay for expenses) with or receive payments from any withholding agent other than a member of its expanded affiliated group; **and**
- Has not agreed to report under Regulations section 1.1471-4(d)(2)(ii)(C) or otherwise act as an agent for chapter 4 purposes on behalf of any financial institution, including a member of its expanded affiliated group.

Part XXVIII Sponsored Direct Reporting NFFE (see instructions for when this is permitted)

42 Name of sponsoring entity: _____

43 ☐ I certify that the entity identified in Part I is a direct reporting NFFE that is sponsored by the entity identified on line 42.

Part XXIX Substantial U.S. Owners of Passive NFFE

As required by Part XXVI, provide the name, address, and TIN of each substantial U.S. owner of the NFFE. Please see the instructions for a definition of substantial U.S. owner. If providing the form to an FFI treated as a reporting Model 1 FFI or reporting Model 2 FFI, an NFFE may also use this part for reporting its controlling U.S. persons under an applicable IGA.

Name	Address	TIN

SAMPLE

Part XXX Certification

Under penalties of perjury, I declare that I have examined the information on this form and to the best of my knowledge and belief it is true, correct, and complete. I further certify under penalties of perjury that:

- The entity identified on line 1 of this form is the beneficial owner of all the income or proceeds to which this form relates, is using this form to certify its status for chapter 4 purposes, or is submitting this form for purposes of section 6050W or 6050Y;
- The entity identified on line 1 of this form is not a U.S. person;
- This form relates to: (a) income not effectively connected with the conduct of a trade or business in the United States, (b) income effectively connected with the conduct of a trade or business in the United States but is not subject to tax under an income tax treaty, (c) the partner's share of a partnership's effectively connected taxable income, or (d) the partner's amount realized from the transfer of a partnership interest subject to withholding under section 1446(f); and
- For broker transactions or barter exchanges, the beneficial owner is an exempt foreign person as defined in the instructions.

Furthermore, I authorize this form to be provided to any withholding agent that has control, receipt, or custody of the income of which the entity on line 1 is the beneficial owner or any withholding agent that can disburse or make payments of the income of which the entity on line 1 is the beneficial owner.

I agree that I will submit a new form within 30 days if any certification on this form becomes incorrect.

☑ **I certify that I have the capacity to sign for the entity identified on line 1 of this form.**

Sign Here ▶ G.O. Running | Gene Owen Running | 02-26-2022

Signature of individual authorized to sign for beneficial owner | Print Name | Date (MM-DD-YYYY)

Section 7: Company Accounts

This form can be completed online\electronically, however, it must be signed by hand.One W-8BEN-E form is required for Company accounts.

No amendments or changes can be made to the form, if you need to change any of the details, you will need to start again with a new form. New forms are available on AdviserHUB under *Products & Forms>Forms>Forms Investment.*

HUB24 have a policy whereby which they will not allow US investment and therefore will not accept a W-8BEN-E form from Companies that have a substantial US shareholder. Please also note that the W-8BEN-E form can only be signed by ONE person, and any form with more than signature will be rejected.

If your account is a trust with a corporate trustee, please refer to Section 6 on Trust Accounts on page 10. If your account is a Self-Managed Super Fund with a corporate trustee, please refer to Section 5 on SMSF Accounts which is on page 6.

The IRS does not specify how an Australian company should complete these forms, and if you are unsure on any aspect of the form or appropriate entity classifications you should contact your tax advisor. Across the next few pages, we have included an example form, and as a guide, generally for a company, completion of the following fields would be expected:

Page 1 Line 1	Name of organization that is the beneficial owner. This is a mandatory field. This must be the Company's full name and must match the certificate of incorporation and the HUB24 account name.
Page 1 Line 2	Country of incorporation or organization. This is a mandatory field.
Page 1 Line 3	Chapter 3 Status (entity type) This is a mandatory field. Generally, an Australian company would be a corporation for US tax purposes. However, as the criteria for entity classification for US tax purposes are different to the rules in Australia, we recommend that you seek independent taxation advice if you are unsure.
Page 1 Line 5	Chapter 4 Status (FATCA status) This is a mandatory field. Generally, an Australian corporation which is not itself a financial institution, would be either a Passive NFFE or an Active NFFE for FATCA purposes however we would recommend that you seek independent taxation advice if you are unsure.
Page 1 Line 6	Permanent Residence Address This is a mandatory field. Enter the Registered Address for the company. This should not be a PO Box or in-care-of address unless that address is also the registered address.
Page 1 Line 7	Mailing Address This is an optional field. Enter the Mailing Address of the company if this is different from the Registered Address.
Page 2 Line 8	US taxpayer identification number (TIN) This is an optional field. Please enter TIN if the company has a US TIN.
Page 2 Line 9	GIIN/Foreign TIN This is a mandatory field. If the company is a Financial Institution and has a GIIN it should be entered, otherwise leave the GIIN field blank. You must either enter the company's ABN (or TFN) or tick box 9c. Please note that FTIN is not legally required for Australian tax residents.
Page 2 Line 10	Reference Number This is an optional field. Enter your HUB24 account number if known or leave blank if this is for a new account.

Page 2 Line 14	Claim of Tax Treaty Benefits This is an optional field. If an entity is eligible for and wishes to claim treaty benefits, this should be completed. Generally, line a should be ticked, with the country completed. In addition, line b should be ticked and one of the subcategories selected. If more than 50% of the owners of the company are Australian tax residents, it would be considered to be a "Company that meets the ownership and base erosion test", and this box should be ticked accordingly.
Pages 2-8 Lines 16-43	FATCA Status Follow Up Certifications It is mandatory to complete the relevant follow up certification. The part of the form to be completed will depend on the FATCA status selected on line 5. If the entity is a Financial Institution, a GIIN should have been included on line 9 and depending on the type of financial institution, any relevant follow up certifications should made accordingly. If a company has selected a FATCA classification of Active NFFE then they would need to complete the tick box on Line 39 to confirm that the entity meets the necessary criteria for this classification. If the FATCA classification is Passive NFFE, then line 40 would need to be completed by ticking the certification on line 40a along with one of either line 40b or line 40c, depending on whether the entity has any US owners or controlling persons.
Page 8	Certification This is mandatory. As you complete this you should read the declaration and tick the box to confirm that you have capacity to sign for the entity listed on line 1 of the form. You should then sign and print your name, and enter the date using American format (MM-DD-YYYY).

Please note, if have received taxation advice to complete the W-8BEN-E form differently to the above, we recommend you follow that advice. HUB24 is unable to provide you with advice in relation to your obligations or the US tax consequences of your investment. For further advice please contact the
Internal Revenue Service (IRS) or your appointed tax adviser. The IRS has published instructions on completing this form on their website at www.irs.gov/formw8bene

Example form completed by an Australian tax resident corporation who wishes to benefit from reduced withholding taxes on US source income:

Form **W-8BEN-E**
(Rev. October 2021)
Department of the Treasury
Internal Revenue Service

Certificate of Status of Beneficial Owner for United States Tax Withholding and Reporting (Entities)

▶ For use by entities. Individuals must use Form W-8BEN. ▶ Section references are to the Internal Revenue Code.
▶ Go to *www.irs.gov/FormW8BENE* for instructions and the latest information.
▶ Give this form to the withholding agent or payer. Do not send to the IRS.

OMB No. 1545-1621

Do NOT use this form for:	**Instead use Form:**
• U.S. entity or U.S. citizen or resident	W-9
• A foreign individual	W-8BEN (Individual) or Form 8233
• A foreign individual or entity claiming that income is effectively connected with the conduct of trade or business within the United States (unless claiming treaty benefits)	W-8ECI
• A foreign partnership, a foreign simple trust, or a foreign grantor trust (unless claiming treaty benefits) (see instructions for exceptions)	W-8IMY
• A foreign government, international organization, foreign central bank of issue, foreign tax-exempt organization, foreign private foundation, or government of a U.S. possession claiming that income is effectively connected U.S. income or that is claiming the applicability of section(s) 115(2), 501(c), 892, 895, or 1443(b) (unless claiming treaty benefits) (see instructions for other exceptions)	W-8ECI or W-8EXP
• Any person acting as an intermediary (including a qualified intermediary acting as a qualified derivatives dealer)	W-8IMY

Part I Identification of Beneficial Owner

1 Name of organization that is the beneficial owner
ABC PTY LTD

2 Country of incorporation or organization
Australia

3 Name of disregarded entity receiving the payment (if applicable, see instructions)

4 Chapter 3 Status (entity type) (Must check one box only):
- ☐ Simple trust
- ☐ Central Bank of Issue
- ☐ Grantor trust
- ☐ Tax-exempt organization
- ☐ Private foundation
- ☐ Disregarded entity
- ☑ Corporation
- ☐ Complex trust
- ☐ Estate
- ☐ International organization
- ☐ Partnership
- ☐ Foreign Government - Controlled Entity
- ☐ Foreign Government - Integral Part

If you entered disregarded entity, partnership, simple trust, or grantor trust above, is the entity a hybrid making a treaty claim? If "Yes," complete Part III. ☐ Yes ☐ No

5 Chapter 4 Status (FATCA status) (See instructions for details and complete the certification below for the entity's applicable status.)
- ☐ Nonparticipating FFI (including an FFI related to a Reporting IGA FFI other than a deemed-compliant FFI, participating FFI, or exempt beneficial owner).
- ☐ Participating FFI.
- ☐ Reporting Model 1 FFI.
- ☐ Reporting Model 2 FFI.
- ☐ Registered deemed-compliant FFI (other than a reporting Model 1 FFI, sponsored FFI, or nonreporting IGA FFI covered in Part XII). See instructions.
- ☐ Sponsored FFI. Complete Part IV.
- ☐ Certified deemed-compliant nonregistering local bank. Complete Part V.
- ☐ Certified deemed-compliant FFI with only low-value accounts. Complete Part VI.
- ☐ Certified deemed-compliant sponsored, closely held investment vehicle. Complete Part VII.
- ☐ Certified deemed-compliant limited life debt investment entity. Complete Part VIII.
- ☐ Certain investment entities that do not maintain financial accounts. Complete Part IX.
- ☐ Owner-documented FFI. Complete Part X.
- ☐ Restricted distributor. Complete Part XI.
- ☐ Nonreporting IGA FFI. Complete Part XII.
- ☐ Foreign government, government of a U.S. possession, or foreign central bank of issue. Complete Part XIII.
- ☐ International organization. Complete Part XIV.
- ☐ Exempt retirement plans. Complete Part XV.
- ☐ Entity wholly owned by exempt beneficial owners. Complete Part XVI.
- ☐ Territory financial institution. Complete Part XVII.
- ☐ Excepted nonfinancial group entity. Complete Part XVIII.
- ☐ Excepted nonfinancial start-up company. Complete Part XIX.
- ☐ Excepted nonfinancial entity in liquidation or bankruptcy. Complete Part XX.
- ☐ 501(c) organization. Complete Part XXI.
- ☐ Nonprofit organization. Complete Part XXII.
- ☐ Publicly traded NFFE or NFFE affiliate of a publicly traded corporation. Complete Part XXIII.
- ☐ Excepted territory NFFE. Complete Part XXIV.
- ☐ Active NFFE. Complete Part XXV.
- ☐ Passive NFFE. Complete Part XXVI.
- ☐ Excepted inter-affiliate FFI. Complete Part XXVII.
- ☐ Direct reporting NFFE.
- ☐ Sponsored direct reporting NFFE. Complete Part XXVIII.
- ☐ Account that is not a financial account.

Select either 'Active NFFE' or 'Passive NFFE'

6 Permanent residence address (street, apt. or suite no., or rural route). **Do not use a P.O. box or in-care-of address** (other than a registered address).
22 Long Street

City or town, state or province. Include postal code where appropriate.
Melbourne, Victoria, 3000

Country
Australia

7 Mailing address (if different from above)
PO Box 24

City or town, state or province. Include postal code where appropriate.
Sydney, NSW, 2001

Country
Australia

SAMPLE

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Part I **Identification of Beneficial Owner** *(continued)*

8 U.S. taxpayer identification number (TIN), if required

9a GIIN | b Foreign TIN | c Check if FTIN not legally required. . . . . ▶ ☑

10 Reference number(s) (see instructions) 789379200

Note: Please complete remainder of the form including signing the form in Part XXX.

Part II **Disregarded Entity or Branch Receiving Payment.** (Complete only if a disregarded entity with a GIIN or a branch of an FFI in a country other than the FFI's country of residence. See instructions.)

11 Chapter 4 Status (FATCA status) of disregarded entity or branch receiving payment

☐ Branch treated as nonparticipating FFI. ☐ Reporting Model 1 FFI. ☐ U.S. Branch.
☐ Participating FFI. ☐ Reporting Model 2 FFI.

12 Address of disregarded entity or branch (street, apt. or suite no., or rural route). **Do not use a P.O. box or in-care-of address** (other than a registered address).

City or town, state or province. Include postal code where appropriate.

Country

13 GIIN (if any)

Part III **Claim of Tax Treaty Benefits** (if applicable). (For chapter 3 purposes only.)

14 I certify that (check all that apply):

a ☑ The beneficial owner is a resident of Australia within the meaning of the income tax treaty between the United States and that country.

b ☑ The beneficial owner derives the item (or items) of income for which the treaty benefits are claimed, and, if applicable, meets the requirements of the treaty provision dealing with limitation on benefits. The following are types of limitation on benefits provisions that may be included in an applicable tax treaty (check only one; see instructions):

☐ Government
☐ Tax-exempt pension trust or pension fund
☐ Other tax-exempt organization
☐ Publicly traded corporation
☐ Subsidiary of a publicly traded corporation
☑ Company that meets the ownership and base erosion test
☐ Company that meets the derivative benefits test
☐ Company with an item of income that meets active trade or business test
☐ Favorable discretionary determination by the U.S. competent authority received
☐ No LOB article in treaty
☐ Other (specify Article and paragraph):

c ☐ The beneficial owner is claiming treaty benefits for U.S. source dividends received from a foreign corporation or interest from a U.S. trade or business of a foreign corporation and meets qualified resident status (see instructions).

15 **Special rates and conditions** (if applicable—see instructions):
The beneficial owner is claiming the provisions of Article and paragraph
of the treaty identified on line 14a above to claim a % rate of withholding on (specify type of income):
Explain the additional conditions in the Article the beneficial owner meets to be eligible for the rate of withholding:

Part IV **Sponsored FFI**

16 Name of sponsoring entity:

17 **Check whichever box applies.**

☐ I certify that the entity identified in Part I:
- Is an investment entity;
- Is not a QI, WP (except to the extent permitted in the withholding foreign partnership agreement), or WT; **and**
- Has agreed with the entity identified above (that is not a nonparticipating FFI) to act as the sponsoring entity for this entity.

☐ I certify that the entity identified in Part I:
- Is a controlled foreign corporation as defined in section 957(a);
- Is not a QI, WP, or WT;
- Is wholly owned, directly or indirectly, by the U.S. financial institution identified above that agrees to act as the sponsoring entity for this entity; **and**
- Shares a common electronic account system with the sponsoring entity (identified above) that enables the sponsoring entity to identify all account holders and payees of the entity and to access all account and customer information maintained by the entity including, but not limited to, customer identification information, customer documentation, account balance, and all payments made to account holders or payees.

Form **W-8BEN-E** (Rev. 10-2021)

SAMPLE

Pages 3 - 6 of the W-8BEN-E form are not included in this guide

Part XXI 501(c) Organization

35 ☐ I certify that the entity identified in Part I is a 501(c) organization that:

- Has been issued a determination letter from the IRS that is currently in effect concluding that the payee is a section 501(c) organization that is dated _____ ; **or**
- Has provided a copy of an opinion from U.S. counsel certifying that the payee is a section 501(c) organization (without regard to whether the payee is a foreign private foundation).

Part XXII Nonprofit Organization

36 ☐ I certify that the entity identified in Part I is a nonprofit organization that meets the following requirements.

- The entity is established and maintained in its country of residence exclusively for religious, charitable, scientific, artistic, cultural or educational purposes;
- The entity is exempt from income tax in its country of residence;
- The entity has no shareholders or members who have a proprietary or beneficial interest in its income or assets;
- Neither the applicable laws of the entity's country of residence nor the entity's formation documents permit any income or assets of the entity to be distributed to, or applied for the benefit of, a private person or noncharitable entity other than pursuant to the conduct of the entity's charitable activities or as payment of reasonable compensation for services rendered or payment representing the fair market value of property which the entity has purchased; **and**
- The applicable laws of the entity's country of residence or the entity's formation documents require that, upon the entity's liquidation or dissolution, all of its assets be distributed to an entity that is a foreign government, an integral part of a foreign government, a controlled entity of a foreign government, or another organization that is described in this part or escheats to the government of the entity's country of residence or any political subdivision thereof.

Part XXIII Publicly Traded NFFE or NFFE Affiliate of a Publicly Traded Corporation

Check box 37a or 37b, whichever applies.

37a ☐ I certify that:

- The entity identified in Part I is a foreign corporation that is not a financial institution; **and**
- The stock of such corporation is regularly traded on one or more established securities markets, including _____ (name one securities exchange upon which the stock is regularly traded).

b ☐ I certify that:

- The entity identified in Part I is a foreign corporation that is not a financial institution;
- The entity identified in Part I is a member of the same expanded affiliated group as an entity the stock of which is regularly traded on an established securities market;
- The name of the entity, the stock of which is regularly traded on an established securities market, is _____ ; **and**
- The name of the securities market on which the stock is regularly traded is _____ .

Part XXIV Excepted Territory NFFE

38 ☐ I certify that:

- The entity identified in Part I is an entity that is organized in a possession of the United States;
- The entity identified in Part I:
  - **(i)** Does not accept deposits in the ordinary course of a banking or similar business;
  - **(ii)** Does not hold, as a substantial portion of its business, financial assets for the account of others; **or**
  - **(iii)** Is not an insurance company (or the holding company of an insurance company) that issues or is obligated to make payments with respect to a financial account; **and**
- All of the owners of the entity identified in Part I are bona fide residents of the possession in which the NFFE is organized or incorporated.

Part XXV Active NFFE

39 ☐ I certify that:

- The entity identified in Part I is a foreign entity that is not a financial institution;
- Less than 50% of such entity's gross income for the preceding calendar year is passive income; **and**
- Less than 50% of the assets held by such entity are assets that produce or are held for the production of passive income (calculated as a weighted average of the percentage of passive assets measured quarterly) (see instructions for the definition of passive income).

Part XXVI Passive NFFE

40a ☐ I certify that the entity identified in Part I is a foreign entity that is not a financial institution (other than an investment entity organized in a possession of the United States) and is not certifying its status as a publicly traded NFFE (or affiliate), excepted territory NFFE, active NFFE, direct reporting NFFE, or sponsored direct reporting NFFE.

Check box 40b or 40c, whichever applies.

b ☐ I further certify that the entity identified in Part I has no substantial U.S. owners (or, if applicable, no controlling U.S. persons); **or**

c ☐ I further certify that the entity identified in Part I has provided the name, address, and TIN of each substantial U.S. owner (or, if applicable, controlling U.S. person) of the NFFE in Part XXIX.

Select either 'Active NFFE' or 'Passive NFFE'

SAMPLE

Part XXVII Excepted Inter-Affiliate FFI

41 ☐ I certify that the entity identified in Part I:

- Is a member of an expanded affiliated group;
- Does not maintain financial accounts (other than accounts maintained for members of its expanded affiliated group);
- Does not make withholdable payments to any person other than to members of its expanded affiliated group;
- Does not hold an account (other than depository accounts in the country in which the entity is operating to pay for expenses) with or receive payments from any withholding agent other than a member of its expanded affiliated group; **and**
- Has not agreed to report under Regulations section 1.1471-4(d)(2)(ii)(C) or otherwise act as an agent for chapter 4 purposes on behalf of any financial institution, including a member of its expanded affiliated group.

Part XXVIII Sponsored Direct Reporting NFFE (see instructions for when this is permitted)

42 Name of sponsoring entity: _____

43 ☐ I certify that the entity identified in Part I is a direct reporting NFFE that is sponsored by the entity identified on line 42.

Part XXIX Substantial U.S. Owners of Passive NFFE

As required by Part XXVI, provide the name, address, and TIN of each substantial U.S. owner of the NFFE. Please see the instructions for a definition of substantial U.S. owner. If providing the form to an FFI treated as a reporting Model 1 FFI or reporting Model 2 FFI, an NFFE may also use this part for reporting its controlling U.S. persons under an applicable IGA.

Name	Address	TIN

SAMPLE

Part XXX Certification

Under penalties of perjury, I declare that I have examined the information on this form and to the best of my knowledge and belief it is true, correct, and complete. I further certify under penalties of perjury that:

- The entity identified on line 1 of this form is the beneficial owner of all the income or proceeds to which this form relates, is using this form to certify its status for chapter 4 purposes, or is submitting this form for purposes of section 6050W or 6050Y;
- The entity identified on line 1 of this form is not a U.S. person;
- This form relates to: (a) income not effectively connected with the conduct of a trade or business in the United States, (b) income effectively connected with the conduct of a trade or business in the United States but is not subject to tax under an income tax treaty, (c) the partner's share of a partnership's effectively connected taxable income, or (d) the partner's amount realized from the transfer of a partnership interest subject to withholding under section 1446(f); **and**
- For broker transactions or barter exchanges, the beneficial owner is an exempt foreign person as defined in the instructions.

Furthermore, I authorize this form to be provided to any withholding agent that has control, receipt, or custody of the income of which the entity on line 1 is the beneficial owner or any withholding agent that can disburse or make payments of the income of which the entity on line 1 is the beneficial owner.

I agree that I will submit a new form within 30 days if any certification on this form becomes incorrect.

☑ **I certify that I have the capacity to sign for the entity identified on line 1 of this form.**

Sign Here ▶ J Smith | James Smith | 02-26-2022

Signature of individual authorized to sign for beneficial owner | Print Name | Date (MM-DD-YYYY)